

STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

In Re:

Kathleen Regan
License No. 68-0205

Docket No. MH02-0999

SPECIFICATION OF CHARGES, STIPULATION AND CONSENT ORDER

SPECIFICATION OF CHARGES

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has jurisdiction to investigate and adjudicate complaints of unprofessional conduct pursuant to 26 V.S.A. §§ 3263 and 3271; 3 V.S.A. §§ 129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.
2. Respondent Kathleen Regan, is a Mental Health Counselor holding license no. 68-0205, issued by the State of Vermont.
3. Respondent treated "A" in a client-counselor relationship, during about October 1996 to December 1997.
4. During June 1999, Respondent began a intimate, romantic relationship with "A."
5. Respondent acted unprofessionally and in violation of: 26 V.S.A. § 3271(6) (entering into an additional relationship with a client, supervisee, research participant or student that might impair the mental health counselor's objectivity or otherwise interfere with the mental health counselor's professional obligations); and 26 V.S.A. § 3271(4) (engaging in any sexual contact with a client...with whom the licensee has had a professional relationship with the previous two years).
6. Wherefore, Respondent's license should be disciplined.

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GENERAL
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STIPULATION

NOW COME the State of Vermont, through its Attorney General William H. Sorrell, and Respondent Kathleen Regan, and stipulate and agree as follows:

1. The Vermont Board of Allied Mental Health Practitioners has jurisdiction to investigate and adjudicate complaints of unprofessional conduct pursuant to 26 V.S.A. §§ 3263 and 3271; 3 V.S.A. §§ 129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.
2. Respondent Kathleen Regan, is a Mental Health Counselor holding license no. 68-0205, issued by the State of Vermont.
3. Respondent admits that she treated "A" in a client-counselor relationship, during about October 1996 to December 1997.
4. Respondent admits that during June 1999, she began a intimate, romantic relationship with "A."
5. Respondent admits the conclusions of unprofessional conduct as set forth herein and the entry of the Order set forth below.
6. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
7. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
8. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation and Consent Order.

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9. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
10. Respondent voluntarily waives her right to charges and a contested hearing before the Board.
11. Respondent waives any notification period and agrees to have this document reviewed by the Board during the next available meeting. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her right to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
12. Respondent agrees that the Board may set forth the order below.

ORDER

Based on the stipulation above it is **ORDERED AND ADJUDGED** as follows:

A. Respondent acted unprofessionally and in violation of: 26 V.S.A. § 3271(6) (entering into an additional relationship with a client, supervisee, research participant or student that might impair the mental health counselor's objectivity or otherwise interfere with the mental health counselor's professional obligations); and 26 V.S.A. § 3271(4) (engaging in any sexual contact with a client...with whom the licensee has had a professional relationship with the previous two years).

B. The Board of Allied Mental Health Practitioners: **SUSPENDS** Respondent's Mental Health Counselor license for a period of ¹⁴ days, commencing on the date this order is entered, during which time she is to present to the Board's

designee at the Office of Professional Regulation, an independent evaluation report by a psychologist or mental health counselor (1. previously approved by the Board's O.P.R. designee, 2. with an unencumbered license in Vermont, and in all states s/he is so licensed, and 3. other than a current provider), verifying that Respondent is capable of returning to competent practice; **REPRIMANDS** the Respondent and thereafter; **CONDITIONS** Respondent's license to practice. The **CONDITIONS** on Respondent's license are as follows:

1. These conditions shall commence, pending completion of the above requirement, ¹⁴~~30~~ days from the date of entry of this order, and shall continue for a ~~minimum~~ period of three (3) ^{WHA} ~~years~~ ^{KAR} ~~years~~, but will continue, if further unprofessional conduct is charged in the interim, until resolution. ^{KAR} ~~years~~ ^{WHA}
2. The Respondent shall maintain seeing her current treating mental health professional, at least once every two weeks, until the treating professional and the Board ^(or its designee) agree that such frequency and/or treatment is no longer necessary. This mental health professional shall file a report with the Board (or its designee) on a quarterly basis addressing Respondent's progress. ^{KAR} ~~progress~~ ^{WHA} ~~The Board will weigh very heavily the opinion of the treating professional.~~
3. The Respondent shall engage in clinical supervision with a psychologist or mental health counselor acceptable to the Board (or its designee) and one who is experienced in working with professionals and boundary issues. Clinical supervision is to be given by someone other than a current provider. Such

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supervision shall include close monitoring of practice limitations as well as assisting the Respondent in developing skills and increasing self-knowledge regarding therapy practice and practice limitation and boundaries.

4. The supervisor's first role shall be to review Respondent's present case load and office arrangements. The supervisor shall be provided a copy of the "Independent evaluation" report, as above, and a copy of this Stipulation and Consent Order. The supervisor shall acknowledge receipt thereof to the Board (or its designee). The supervisor shall meet with the Board (or its designee) at the beginning of this supervision, or as soon as possible thereafter, so that the Board may be assured that the supervisor is fully acquainted with the facts and issues in this case.
5. If the supervisor thinks that there are changes that need to be made, to either improve clinical treatment or to avoid unprofessional conduct, the Respondent shall take the appropriate responsible steps in accordance with the suggestions and with the approval of the supervisor. All new patients' files will be presented to the supervisor to assess if they are appropriate to the Respondent's practice. If deemed inappropriate to that practice by the supervisor then responsible

steps shall be taken for their transfer to another treatment professional.

6. Additionally, Respondent shall develop with this supervisor an assessment and plan to address boundary issues and submit this plan to the Board (or its designee) for approval.
7. Respondent shall meet with the supervisor periodically, and not less than once per month, throughout the period of this Stipulation and Consent Order. Supervision will involve not just review of specific clinical case issues but also and especially address boundary issues. The supervisor shall file a report with the Board (or its designee) on a quarterly basis addressing Respondent's progress and adherence to good practice standards.
8. Such supervision shall have commenced within thirty (30) days after the date of entry of this order.
9. The Board (or its designee) shall have full access to information related to the matters set forth above from any supervising psychologist or mental health counselor. The Respondent shall give appropriate releases to the Board (or its designee) by upon request. Failure to do so shall be a violation of this order.
10. Respondent shall bear all cost associated with compliance with this order.

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11. By signing this Stipulation and Consent Agreement, Respondent agrees to allow the Board (or its designee), to obtain information, either orally or in writing, from her supervising professional at any time during the period this Stipulation and Consent Order is in effect.
12. Respondent shall provide a copy of this Stipulation and Consent Order to all employers in any current or future setting in which she practices as a mental health counselor and inform them of her conditional license status. Within thirty (30) days of the date of entry of this Consent Order or of any subsequent employment, Respondent shall cause her immediate supervisor to write to the Board, on the employer's letterhead, acknowledging receipt of the Stipulation and Consent Order. If Respondent is self-employed, she shall write to the Board's designee and state this.
13. Respondent shall, at her own expense, complete a three-credit (or higher) graduate-level ethics course approved by the Board or its designee, and submit written documentation (certificate of completion, etc.) to the Board or its designee to verify a passing grade in same within one year of entry of this Order. Completion after one year will not count towards fulfillment of this condition unless prior written authorization is first obtained from the Board's designee. The requirements of this paragraph shall be in

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addition to the continuing education requirements for license renewal.

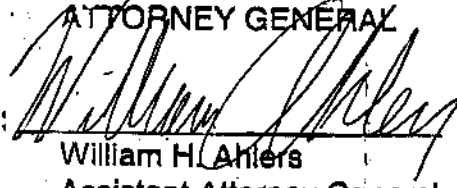
C. If Respondent violates the terms of this Consent Order in any respect, the Board, after giving Respondent notice and an opportunity to be heard, may revoke the terms of the conditional license and take further disciplinary action.

D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a)(7).

E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

STATE OF VERMONT

WILLIAM H. SORRELL
ATTORNEY GENERAL

by: 
William H. Ahlers
Assistant Attorney General

Dated: 11/15/99

APPROVED AS TO FORM:

 11/199
ATTORNEY FOR RESPONDENT

Dated: 11-17-99

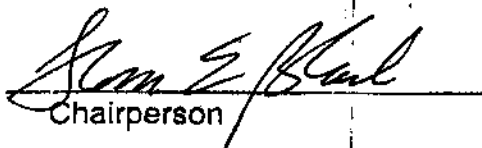
KATHLEEN REGAN
RESPONDENT

by: 
Kathleen Regan

APPROVED AND SO ORDERED:

BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 12-16-99

by: 
Chairperson

Date of entry: 12-20-99

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